

to exist between cases where the language of the trust is indefinite as to the persons by whom it is to be exercised (for example, where an estate is vested in trustees and their heirs *in trust to sell*, &c.), and those cases where the estate is limited to *persons by name*, as upon trust that "the said A. and B.," or that "the *said* trustees" (which is equivalent to naming them), shall sell; but the Courts have never relied upon any distinction of the kind, and it seems to be now decided that even where the trust is reposed in the trustees by name, the survivor, who takes the estate with a duty annexed to it, can execute the trust (a); and the rule of survivorship applies not only to trusts, or powers imperative which are construed as trusts, but also to such discretionary powers as are annexed to the office of trustee, and are meant to form an integral part of it (b).

3. **Powers not annexed to the trust.** — But powers which are purely *arbitrary*, and independent of the trust, and not intended in furtherance of the trust, must, it is conceived, be construed strictly, and be governed by the rules applicable to ordinary powers. If, for instance, the trustees by name have a power of revoking the limitations, and shifting the property into a different channel, this discretion is evidently meant to be personal, and not to be annexed to the estate or office (c).

[4. **Recent Act.** — Now, as to executorships and trusts constituted after or created by instruments coming into operation after the 31st December, 1881, a power or trust given to or vested in two or more executors or trustees jointly, may, in the absence of a contrary intention expressed in the instrument creating the power or trust, be exercised or performed by the survivor or survivors of them for the time *being (a). But it is conceived [*613] that this section does not apply to a purely arbitrary and personal power given to trustees *nominatim*.]

(a) *Lane v. Debenham*, 11 Hare, 188; *Hall v. May*, 3 K. & J. 585; [*Re Cooke's Contract*, 4 Ch. D. 454.]

(b) *Warburton v. Sandys*, 14 Sim. 622.

(c) See *Lane v. Debenham*, 11 Hare, 192.

[(a) 44 & 45 Vict. c. 41, s. 38.]